

Revised 05/01 WDNV

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK**

MARC M. MOSZKOWSKI

(Name of Plaintiff or Petitioner)

V.

DAVID L. RUMSEY, RUSTIN R. HOWARD, DEEPGULF, INC.

(Name of Defendant(s) or Respondent(s))

**MOTION TO PROCEED IN FORMA PAUPERIS
AND SUPPORTING AFFIRMATION**

06:26 -CV- 06015 EAW



I, **MARC M. MOSZKOWSKI**, (print or type your name) am the plaintiff/petitioner in the above entitled case and hereby request the Court's permission to proceed *in forma pauperis*.

In support of my motion to proceed without being required to prepay fees, costs, or give security therefor, I state that because of my poverty I am unable to pay the costs of this action or to give security therefor and that I believe I am entitled to redress.

I further declare that the responses which I have made in this affirmation below are true.

1. Are you presently employed? Yes ☐ No ☒
My Employer's Name and Address is: **N/A**

My Gross Monthly Wages are: \$ **N/A**

If you are not presently employed, state

Your Last Date of Employment: **DECEMBER 2012, DATE OF LAST SALARY**

Your Gross Monthly Wages at that time: **\$11,000**

Is your spouse presently employed? Yes ☐ No ☒

My Spouse's Employer's Name and Address is: **N/A, PLAINTIFF HAS NO SPOUSE**

My Spouse's Gross Monthly Wages are \$ **N/A**

2. Have you received **any money** from any of the following sources within the past twelve months:

a. Business, profession or self-employment? Yes ☐ No ☒

If yes, state **source** and **amount received** per month \$ **N/A**

b. Rent payments, interest or dividends? Yes ☐ No ☒

If yes, state **source** and **amount received** per month \$ **N/A**

c. Pensions, annuities, disability, or life insurance payments? Yes ☒ No ☐

If yes, state **source** and **amount received** per month \$ **1,016 AS OF 11 AUGUST, 2026, RETIREMENT PENSION**

d. Gifts or inheritances? Yes ☐ No ☒

If yes, state **source** and **amount received** per month \$ **N/A**

e. Child Support? Yes ☐ No ☒

If yes, state **amount received** each month \$ **N/A**

f. Government Benefits (Social Security, SSI, Welfare, AFDC, Veterans, etc.)? Yes ☐ No ☒

If yes, state **source** and **amount received** per month \$ **N/A**

g. Friends, Relatives or any other source? Yes ☐ No ☒

If yes, state **source** and **amount received** per month \$ **N/A**

If you have **not** received any money from any of the above sources, please explain how you are currently paying your expenses:

N/A

3. What is your total gross monthly income today: \$ **1,016 AS OF AUGUST 11, 2026**

4. How much **cash** do you have on hand? \$ **0**

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5. How much money do you have in a checking account(s)? \$ MINUS \$554 OVERDRAFT AS OF 08-11-26, ACCOUNTS SEIZED BY DEFENDANT DAVID L. RUMSEY
6. How much money do you have in a savings account(s)? \$ 0
7. If you are an inmate of a correctional facility, state the amount of funds in your inmate account (NOTE: prisoners must have inmate account balances certified by an authorized official of the correctional facility and must include a signed Authorization for payment of the filing fee): N/A
8. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)? Yes ☒ No ☐
 If so, describe the property in detail and give an estimated value of the property: **TOO LONG TO FIT IN FORM, SEE ATTACHED SHEET FOR CONTINUATION OF QUESTION 8**
 If you own property, are you paying off a loan or mortgage on it? Yes ☐ No ☒
 If yes where are you obtaining the money to make such payments: N/A
9. If you are not an inmate, state your total monthly household expenses:
 Rent or mortgage \$ 0 Food \$ 200 Utilities \$ 345 All other expenses \$ 470
 If your monthly expenses exceed the amount of income you listed in # 3 above, please explain how you are paying your expenses
N/A
10. List all of the people who are in your household and state the amount of money each one contributes to household expenses each month: NONE
11. List the persons who are dependent upon you for support, state your relationship to those persons, and indicate how much you contribute toward their support: NONE
12. Have you been adjudicated bankrupt within the past ten (10) years? Yes ☐ No ☒
 If the answer is yes, please include the court and date of filing N/A

I declare under penalty of perjury that the foregoing is true and correct.

Executed on 12 AUGUST, 2026
 (Date)

M. Marzowski
 (Applicant's Signature)

PRISON CERTIFICATION SECTION

(Required for Prisoner Requests Only; Prisoner Requests Must Have This Section Completed By Prison Official)

I certify that the movant has the sum of \$ _____ on account to his/her credit at the _____
 _____ Correctional Facility where s/he is currently confined.

I further certify that the movant has the following securities to his/her credit according to the institution's records: _____

I further certify that the movant's average account balance was \$ _____ during the last six months.

 Signature of Authorized Officer of Institution

 Print Name of Authorized Officer of Institution



**CONTINUATION SHEET — AMENDED MOTION TO PROCEED IN
FORMA PAUPERIS**

Case No. 6:26-CV-06015-EAW

Question 8

8. REAL ESTATE OR OTHER VALUABLE PROPERTY:

Plaintiff's only real property is located in France. It is presently under judicial seizure at the instance of Defendant David L. Rumsey, who is seeking its court-ordered forced sale at auction. The French court is scheduled to rule on September 4, 2026.

Current market value cannot reasonably be estimated because the property is highly atypical and isolated, with no meaningful comparable properties from which a reliable market value can be derived.

Although Plaintiff retains formal legal title, the judicial seizure has deprived him of its practical economic benefits: he is legally barred from freely selling or otherwise disposing of the property or obtaining funds from it. The property is therefore not an asset presently available to Plaintiff for payment of any expense. Moreover, any funds that might otherwise be received by Plaintiff and credited to his bank accounts would themselves be immediately subject to seizure by Defendant David L. Rumsey.

Plaintiff owns no stocks, bonds, notes, automobiles, or other valuable property.

